

		the promise was false.” <i>Beckwith v. Dahl</i> (2012) 205 Cal.App.4th 1039, 1060. “Something more than nonperformance is required to prove the defendant’s intent not to perform his promise. If plaintiff adduces no further evidence of fraudulent intent than proof of nonperformance of a promise, he will never reach a jury.” <i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 481. “It is insufficient to show an unkept but honest promise, or mere subsequent failure of performance.” <i>Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Assn.</i> (2013) 55 Cal.4th 1169, 1183. In the TAC, Plaintiffs have adequately alleged, for purposes of the pleading stage, that Defendants did not intend to honor the agreement and entered the agreement as part of the scheme to force Plaintiffs to sell their property. (TAC, ¶ 107.) Therefore, the demurrer is overruled as to this cause of action. Plaintiffs to give notice. Case Management Conference Regardless whether the parties submit on the tentative or not, it appears the case is not at issue as there have been no answers filed to Plaintiff’s third amended complaint by any defendant as of this time. Accordingly, the Case Management Conference is continued and an Order to Show Cause hearing re Sanctions for Failure to Enter Defaults as to Each Non-Answering Defendant, pursuant to CRC 3.100(g), is set for 05/12/2025 at 1:45 PM in Department C15.
3	Griffin vs. Ken Grody Ford 2023-01329848	Demurrer to Amended Complaint Defendant Ken Grody Ford’s demurrer to the Verified First Amended Complaint (“FAC”) filed by plaintiff Tanner Griffin is OVERRULED in part and SUSTAINED in part. <u>First Cause of Action for Breach of Oral Contract</u> “The elements of a breach of oral contract cause are: ‘(1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the

breach.” *Aton Ctr., Inc. v. United Healthcare Insurance Co.* (2023) 93 Cal.App.5th 1214, 1230.

The FAC alleges two separate oral contracts. First, Plaintiff alleges he “took his vehicle, which was under warranty, to Defendant for repair and Defendant promised to fix the Vehicle and return the Vehicle to Plaintiff.” (FAC, ¶ 33.) While the Vehicle was under the custody of Defendant, it was stolen. (FAC, ¶ 8.) Defendants admitted they were at fault for the loss of his Vehicle. (FAC, ¶ 16.) As a result, Plaintiff has been damaged since the Defendant has not returned the repaired Vehicle. (FAC, ¶ 37.)

Second, Plaintiff alleges after the Vehicle was stolen, Plaintiff and Defendant entered into an oral agreement to make Plaintiff whole. (FAC, ¶ 35.) Defendant agreed to provide another replacement vehicle as an option to mitigate the loss along with an extended warranty for this new vehicle. (FAC, ¶ 21.) However, Defendant failed to compensate Plaintiff for the loss of the Vehicle. (FAC, ¶ 37.) As a result, Plaintiff has suffered damages. (FAC, ¶ 42.)

These allegations are sufficient at the pleading stage to withstand demurrer.

Therefore, the demurrer to the first cause of action is OVERRULED.

Third Cause of Action for Fraud

Lazar v. Superior Court (1996) 12 Cal.4th 631, 638, states, “‘The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.’ [Citations.]” “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. [Citations.] ‘Thus ‘the policy of liberal construction of the pleadings . . . will not ordinarily be invoked to sustain a pleading defective in any material respect.’” [Citation.] [¶] This particularity requirement necessitates pleading *facts* which show how, when, where, to whom, and by what means the representations were tendered.’ [Citation.] A plaintiff’s burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must ‘allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what

they said or wrote, and when it was said or written.’ [Citation.]” *Id.*, at 645.

The fraud cause of action is based on allegations that Defendant represented to Plaintiff they would make him whole. (FAC, ¶ 20, 21.) However, the FAC fails to satisfy the specificity requirement. The FAC does not allege who, how, when, where and by what means the representations were tendered. Therefore, the demurrer to the third cause of action is SUSTAINED.

Fourth Cause of Action for Conversion:

“““Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages”” [Citation.]” *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240. “To prove a cause of action for conversion, the plaintiff must show the defendant acted intentionally to wrongfully dispose of the property of another.” *Duke v. Superior Court* (2017) 18 Cal.App.5th 490, 508.

The FAC fails to sufficiently allege Defendant engaged in a wrongful act or disposition of property right. The FAC alleges “Vehicle was moved from the secure, locked service area to the unsecured area” and “[k]eys were left in the vehicle and the doors were left unlocked in the unsecured area even though the Service Department of the dealership closes at 3PM.” (FAC, ¶¶ 9, 10.) Plaintiff also alleges “Defendants intentionally parked Plaintiff’s Vehicle on the street with the keys inside at just the opportune time for an unidentified individual to pass by the Vehicle and steal it.” (Complaint, ¶ 55.) Plaintiff’s allegation that Defendant “intentionally parked” Plaintiff’s Vehicle on the street with the key inside so that it would be stolen is a conclusionary allegation devoid of any factual support. *Ankeny v. Lockheed Missiles and Space Co.* (1979) 88 Cal.App.3d 531, 537 [“It is settled law that a pleading must allege facts and not conclusions.”]. Accordingly, the FAC fails to sufficiently allege a wrongful act or disposition of property right.

Therefore, the demurrer to the fourth cause of action is SUSTAINED. Plaintiff has 20 days leave to amend. Defendant to give notice.

Motion to Strike Amended Complaint

Defendant Ken Grody Ford's motion to strike portions of the Verified First Amended Complaint filed by plaintiff Tanner Griffin is GRANTED.

Punitive Damages

Civil Code Section 3294, subdivision (a) provides for punitive damages: "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant."

Section 3294, subdivision (c) defines malice, oppression and fraud as follows: "(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury."

Civil Code Section 3294, subdivision (b) states: "An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation."

Here, Plaintiff has not sufficiently alleged malice, oppression or fraud. Further, Plaintiff has not alleged the advance knowledge and conscious

		disregard, authorization, ratification or act of oppression, fraud, or malice on the part of an officer, director, or managing agent of Defendant. Therefore, the motion to strike punitive damages is GRANTED. Plaintiff has 20 days leave to amend. Defendant to give notice. Case Management Conference If the parties submit on the tentatives and/or the tentatives become the order of the Court, the Case Management Conference is continued to 11/24/2025 at 08:30 AM in Department C15. If the parties do not submit on the tentatives, the parties through counsel are required to attend the Case Management Conference, either remotely or in the courtroom.
4	Valley Gardens Property Investments, L.P. vs. Pham 2023-01355768	Motion for Leave to File Amended Complaint Plaintiff Valley Gardens Property Investments, L.P.’s Motion for Leave to File an Amended Complaint is GRANTED. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” <i>Code of Civil Procedure</i> § 473(a)(1). “Generally, leave to amend must be liberally granted [citations], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” <i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448. Here, the Court granted Defendants’ motion to strike punitive damages on 7/29/24, but the order did not specify whether Plaintiff could file an amended complaint. Plaintiff now seeks to file a